

ELIZABETH II



1971 CHAPTER iii

An Act to confirm Provisional Orders of the Minister of Housing and Local Government relating to the urban district of Melton Mowbray and the city of Sheffield.
[17th February 1971]

WHEREAS under the provisions of the Public Health Act 1875, the Public Health Act 1936 and the Food and Drugs Act 1955 the Minister of Housing and Local Government has made the Provisional Orders set forth in the schedule hereto which need confirmation by Parliament: 1875 c. 55.
1936 c. 49.
1955 c. 16
(4 & 5 Eliz. 2).

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The orders of the Minister of Housing and Local Government which are set out in the schedule to this Act are hereby confirmed and shall have full validity and force. Confirmation of orders in schedule.

2. This Act may be cited as the Ministry of Housing and Local Government Provisional Orders Confirmation (Melton Mowbray and Sheffield) Act 1971. Short title.

c. iii *Ministry of Housing and Local Government
Provisional Orders Confirmation (Melton Mowbray
and Sheffield) Act 1971*

Section 1.

SCHEDULE

URBAN DISTRICT OF MELTON MOWBRAY

Provisional Order amending a Local Act

1875 c. 55.
1936 c. 49.
1955 c. 16
(4 & 5 Eliz. 2).

The Minister of Housing and Local Government, on the application of the urban district council of Melton Mowbray and in exercise of his powers under section 303 of the Public Health Act 1875, section 317 of the Public Health Act 1936 and section 131 of the Food and Drugs Act 1955 and of all other powers enabling him in that behalf, hereby makes the following order:—

Citation and
commencement.

1. This order may be cited as the Urban District of Melton Mowbray Order 1970, and shall come into operation on the date of the Act of Parliament confirming it.

Amendment of
power to let
stalls etc.

1869 c. xxvii.

2. In section 19 of the Melton Mowbray Cattle Market, &c. Act 1869 (which empowers the urban district council of Melton Mowbray to let stalls, standings, sites or other conveniences in the cattle market provided by them under the said Act), for the words “for any time not exceeding three years, at such rent and on such terms as they think reasonable” there shall be substituted the words “for such period, at such rent and on such terms as they think reasonable”.

CITY OF SHEFFIELD

Provisional Order amending Local Enactments

The Minister of Housing and Local Government, on the application of the council of the city of Sheffield and in exercise of his powers under sections 297 and 303 of the Public Health Act 1875, section 317 of the Public Health Act 1936 and section 131 of the Food and Drugs Act 1955 and of all other powers enabling him in that behalf, hereby makes the following order:—

Citation and
commencement.

1. This order may be cited as the Sheffield Order 1970, and shall come into operation on the date of the Act of Parliament confirming it.

Interpretation.

1918 c. lxi.

2. In this order—

“the Act of 1918” means the Sheffield Corporation (Consolidation) Act 1918;

1926 c. lv.

“the order of 1926” means the Sheffield Order 1926 as confirmed by the Ministry of Health Provisional Orders Confirmation (No. 6) Act 1926;

“the corporation” means the lord mayor, aldermen and citizens of the city of Sheffield acting by the council.

3. In article 3(ii) of the order of 1926 (which altered the provisions of section 234 of and Schedule 5 to the Act of 1918 so far as they relate to stands in the dead meat market for the sale of home-grown dead meat), for the words "any rent not exceeding threepence per square foot per week during the period of five years aforesaid and fourpence per square foot per week thereafter" there shall be substituted the words "any rents approved by the Secretary of State on the application of the corporation from time to time". Amendment
of dead meat
market
provisions.

4.—(1) The Secretary of State may cause such local inquiry to be held as he may consider necessary for the purpose of any of his functions under section 234 of the Act of 1918 as amended by the order of 1926 and this order. Local
inquiries.

(2) Subsections (2) to (5) of section 290 of the Local Government Act 1933 (which relate to the giving of evidence at inquiries and the payment of costs) shall apply to inquiries held under this article. 1933 c. 51.

5. Nothing in article 3 of this order shall affect the power of the corporation to recover the sums mentioned in article 3(ii) of the order of 1926 until any other rent in that respect has been approved by the Secretary of State under section 234 of the Act of 1918 as amended by the said article 3(ii) and article 3 of this order. Savings.

c. iii *Ministry of Housing and Local Government*
Provisional Orders Confirmation (Melton Mowbray
and Sheffield) Act 1971

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